



Senate

General Assembly

File No. 472

February Session, 2026

Senate Bill No. 422

Senate, April 7, 2026

The Committee on Energy and Technology reported through SEN. NEEDLEMAN of the 33rd Dist., Chairperson of the Committee on the part of the Senate, that the bill ought to pass.

AN ACT CONCERNING BIOMASS FACILITIES.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subdivision (20) of subsection (a) of section 16-1 of the 2026
2 supplement to the general statutes is repealed and the following is
3 substituted in lieu thereof (*Effective October 1, 2026*):

4 (20) "Class I renewable energy source" means (A) electricity derived
5 from (i) solar power, (ii) wind power, (iii) a fuel cell, (iv) geothermal, (v)
6 anaerobic digestion or other biogas derived from biological sources, (vi)
7 thermal electric direct energy conversion from a certified Class I
8 renewable energy source, (vii) ocean thermal power, (viii) wave or tidal
9 power, (ix) low emission advanced renewable energy conversion
10 technologies, including, but not limited to, zero emission low grade heat
11 power generation systems based on organic oil free rankine, kalina or
12 other similar nonsteam cycles that use waste heat from an industrial or
13 commercial process that does not generate electricity, (x) (I) a run-of-
14 the-river hydropower facility that began operation after July 1, 2003, has
15 a generating capacity of not more than sixty megawatts, is not based on

16 a new dam or a dam identified by the Commissioner of Energy and
17 Environmental Protection as a candidate for removal, and meets
18 applicable state and federal requirements, including state dam safety
19 requirements and applicable site-specific standards for water quality
20 and fish passage, or (II) a run-of-the-river hydropower facility that
21 received a new license after January 1, 2018, under the Federal Energy
22 Regulatory Commission rules pursuant to 18 CFR 16, as amended from
23 time to time, is not based on a new dam or a dam identified by the
24 Commissioner of Energy and Environmental Protection as a candidate
25 for removal, and meets applicable state and federal requirements,
26 including state dam safety requirements and applicable site-specific
27 standards for water quality and fish passage, [(xi) a biomass facility,
28 provided such facility has executed an agreement to provide energy to
29 an electric distribution company prior to October 1, 2025, that (I) uses
30 sustainable biomass fuel and has an average emission rate of equal to or
31 less than .075 pounds of nitrogen oxides per million BTU of heat input
32 for the previous calendar quarter, or (II) has a capacity of less than five
33 hundred kilowatts that began construction before July 1, 2003, may be
34 considered a Class I renewable energy source for the duration of such
35 agreement,] or [(xii)] (xi) a nuclear power generating facility constructed
36 on or after October 1, 2023, or (B) any electrical generation, including
37 distributed generation, generated from a Class I renewable energy
38 source, provided, on and after January 1, 2014, any megawatt hours of
39 electricity from a renewable energy source described under this
40 subparagraph that are claimed or counted by a load-serving entity,
41 province or state toward compliance with renewable portfolio
42 standards or renewable energy policy goals in another province or state,
43 other than the state of Connecticut, shall not be eligible for compliance
44 with the renewable portfolio standards established pursuant to section
45 16-245a;

46 Sec. 2. Subsections (a) and (b) of section 16a-3u of the 2026
47 supplement to the general statutes are repealed and the following is
48 substituted in lieu thereof (*Effective October 1, 2026*):

49 (a) For the purposes of this section:

50 (1) "Existing biomass power purchase agreement" means a power
51 purchase agreement that: (A) (i) Was entered into by a biomass facility
52 that uses sustainable biomass fuel and has an average emission rate of
53 less than or equal to .075 pounds of nitrogen oxides per million BTU of
54 heat input for the previous calendar quarter, or energy derived from a
55 biomass facility with a capacity of less than five hundred kilowatts that
56 began construction before July 1, 2003, with an electric distribution
57 company in the state on or before June 5, 2013, or (ii) was executed in
58 accordance with a solicitation pursuant to section 16a-3f or 16a-3h; and
59 (B) was in effect as of January 1, 2024.

60 (2) "Eligible biomass facility" means a biomass facility that uses
61 sustainable biomass fuel and has an average emission rate of less than
62 or equal to .075 pounds of nitrogen oxides per million BTU of heat input
63 for the previous calendar quarter, or energy derived from a biomass
64 facility with a capacity of less than five hundred kilowatts that began
65 construction before July 1, 2003, and that has entered into one or more
66 existing biomass power purchase agreements.

67 (3) "Additional biomass power purchase agreement" means a
68 biomass power purchase agreement that is entered into by an eligible
69 biomass facility and an electric distribution company pursuant to
70 subdivision (b) of this section, for such facility's energy, [capacity and
71 environmental attributes, or any combination of such energy and
72 attributes.]

73 (4) "Electric distribution company" and "electric supplier" have the
74 same meanings as provided in section 16-1, as amended by this act.

75 (b) Not later than September 1, 2025, the Commissioner of Energy and
76 Environmental Protection shall initiate a proceeding to solicit proposals,
77 in consultation with the procurement manager identified in subsection
78 (l) of section 16-2, and the Office of Consumer Counsel, in one
79 solicitation or multiple solicitations, for energy [and environmental
80 attributes] from eligible biomass facilities. The Commissioner of Energy
81 and Environmental Protection may direct any electric distribution
82 company to enter into one or more additional biomass power purchase

83 agreements with any eligible biomass facility, provided any such
84 agreement considers the costs to operate such facility, is in the best
85 interest of ratepayers and supports the state's solid waste management
86 plan pursuant to section 22a-228. Any such additional power purchase
87 agreement shall begin upon the termination of the applicable existing
88 biomass power purchase agreements, and shall not exceed a period of
89 ten years.

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	16-1(a)(20)
Sec. 2	<i>October 1, 2026</i>	16a-3u(a) and (b)

ET *Joint Favorable*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill removes an exemption in PA 25-173 for biomass facilities with an executed agreement to provide energy to an electric distribution company before October 1, 2025, and has no fiscal impact to the state.

The Out Years

State Impact: None

Municipal Impact: None

OLR Bill Analysis**SB 422*****AN ACT CONCERNING BIOMASS FACILITIES.*****SUMMARY**

PA 25-173 removed biomass facilities from the types of energy sources considered Class I renewable energy sources, but created an exception for biomass facilities with an executed agreement to provide energy to an electric distribution company (EDC; Eversource or United Illuminating) before October 1, 2025. This bill removes that exception.

Specifically, the bill removes from Class I any biomass facility that has an executed agreement to provide energy to an EDC before October 1, 2025, and:

1. uses sustainable biomass fuel and has an average emission rate of up to .075 pounds of nitrogen oxides per million British thermal units of heat input for the previous calendar quarter or
2. has a capacity of less than 500 kilowatts and began construction before July 1, 2003.

Under current law, the biomass facility is considered a Class I renewable energy source for the duration of its agreement. Generally, removing a type of energy source from Class I makes these facilities ineligible for benefits the law provides for Class I resources, such as participation in certain power procurements administered by the Department of Energy and Environmental Protection (DEEP) and the ability to sell Class I renewable energy credits.

Relatedly, the bill removes a biomass facility's environmental attributes and capacity from the products that EDCs may purchase through a DEEP solicitation authorized under existing law and makes

conforming changes.

EFFECTIVE DATE: October 1, 2026

COMMITTEE ACTION

Energy and Technology Committee

Joint Favorable

Yea 14 Nay 12 (03/19/2026)